

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,

DOCKET NO. 25-14

Complainant,

v.

OAK WAY CARGO, LLC,

Respondent,

**RESPONDENT OAK WAY CARGO, LLC'S RESPONSE IN OPPOSITION TO
COMPLAINANT'S MOTION TO OVERRULE RESPONDENT'S
OBJECTIONS AND COMPEL BETTER ANSWERS**

Respondent Oak Way Cargo, LLC ("Oak Way" or "Respondent"), by and through undersigned counsel and pursuant to 46 C.F.R. § 502.150(a), hereby files this Response in Opposition to Complainant Way2Go Cargo, Corp's ("Way2Go" or "Complainant") Motion to Overrule Respondent's Objections and Compel Better Answers ("Motion"), and in support thereof states as follows:

INTRODUCTION

This case is in front of the Federal Maritime Commission, which utilizes expedited procedures to afford the parties with an initial decision within one year of the filing of Respondent's Answer. *See* 46 C.F.R. § 502.141(g). Yet Complainant is treating this as if this were a typical case in federal court and has demanded that Oak Way produce 38 categories of documents and respond to 20 individual interrogatories. The vast majority of that discovery has nothing to do with the issue before the Commission, which is whether Oak Way is acting as an OTI without a license issued by the Federal Maritime Commission in violation of 46 U.S.C. § 40901(a), and whether Way2Go has been harmed as a result. *See* Order [D.E. 32] at 4.



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And this is not the first time that Complainant has engaged in this improper conduct. As detailed in Oak Way's motion for protective order, Complainant sought to examine Oak Way's corporate representative on fifty separate areas of examination, much of which were irrelevant to the issues before the Court. *See* Motion for Protective Order [D.E. 31] at 2.

Further, the parties already participated in a four-day evidentiary hearing before the District Court on Complainant's motion for a preliminary injunction, and Complainant already had the opportunity to question and cross examine the corporate representative of Oak Way and Rafael Alvez. Further, Oak Way has already produced hundreds of documents and responded to many of the interrogatories.

Lastly, Complainant filed a verified complaint in this case stating under oath that Oak Way was acting as an unlicensed OTI. One would hope that it had supporting evidence when it made that statement. It is unclear what additional information Complainant needs, and its scorched earth discovery tactics is an abuse and not proportional to the needs of the case—**especially since Complainant can't even articulate its purported damages.** *See* Complainant's responses to Interrogatories Nos. 2, 5, 8-11, 17-20., attached as Exhibit A. Enough is enough. The Commission should deny Complainant's motion to compel.

ARGUMENT

I. Oak Way Properly Objected to Complainant's Irrelevant, Overbroad, and Harassing Discovery Requests

a. Interrogatories Nos. 1, 6, 7, 10, 16, and 20 and RFP Nos. 17, 18, 21, 23, and 38

There is one limited question in front of the Commission, whether Oak Way is acting as an unlicensed OTI, and whether Complainant was damaged as a result of that activity. The Commission has made that clear on multiple occasions. *See* Order Denying Motion to Dismiss [D.E. 14] at footnote 2; Order [D.E. 32] at 4.



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As such, any discovery should be limited to Oak Way's conduct and the harm to Way2Go.

But Plaintiff's discovery goes well beyond that and seeks information and documents on companies that are not before the Commission—such as Oak Bridge Way.

For example, in interrogatory Number 10, Complainant asks the following:

Identify all clients, agents, shippers, consignees, or vendors with whom Oak Bridge Way has worked with for the Relevant Time Period using Way2Go's identity, credentials, or FMC license, including the nature and dates of each transaction.

That's plainly improper, as are interrogatories 1,6, 16 and 20. The same is true for the document requests. For example, request for production 38 seeks:

All bills of lading created by Oak or Oak Bridge Way that omit a FMC license or registration number.

Again, Oak Bridge Way is not before the Court, nor is it alleged to have done any wrong conduct.

Further, Complainant also doesn't attempt to tie this purported "wrong" to harm it suffered. This request merely asks about a bill of lading with no license number, but does not seek information related to shipments that were purportedly made with Way2Go's license number.

These requests are plainly overbroad, harassing, and not proportionate the needs of the case. The same is true for requests for production 17, 18, 21, 23, and 38.

b. RFP Nos. 2, 3, 12–20, 24, 25, 30, and 32–37 and Interrogatories Nos. 9, 12, 15, and 18

In its motion, Complainant simply asserts that RFPs 2, 3, 12–20, 24, 25, 30, and 32–37 and Interrogatories 9, 12, 15, and 18 are proper on notion that the information is "necessary to determine whether Oak Way was carrying out NVOCC or freight forwarded function or representing itself as an OTI in violation of § 40901(a)." No, it isn't.

Again, any purported violations by Oak Way are only relevant if they **caused harm to Way2Go**. See Order Denying Motion to Dismiss [D.E. 14] at footnote 2. There is no legitimate



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basis for Complainant to seek discovery not related to Oak Way's purported use of Way2Go's license, and Oak Way has clearly stated that it would produce "non-privileged documents in its possession, custody or control that include or reference Way2Go's FMC license." *See e.g.* responses to requests 2, 3, 12.

Further, the documents that Complainant seeks are plainly irrelevant and overbroad. For example, in request for production 20 it seeks:

All documents and communications relating to any complaint, inquiry, or investigation by the FMC, U.S. Customs and Border Protection, or any other regulatory authority regarding Oak's operations.

That request is a mere fishing expedition and plainly seeks information that has nothing to do with Way2Go. In any event, Respondent is confident that the Commission does not need Way2Go's assistance in its investigations (if any).

c. RFP Nos. 5, 6, 29

Complainant maintains that it needs these documents on the notion that it needs "evidence of Oak Way collecting freight monies" to determine whether Oak Way is holding itself out as an OTI. Motion at 3. That's not the law, and in any event, Complainant's requests, however, go well beyond that. For example, request for production 6 asks for:

All documents relating to the application for, creation, opening, or use of any bank account in the name of Way2Go by or for the benefit of Oak, Oak Bridge Way, Raphael Alves, Diego Santana, or any other Oak principal.

That request is abusive on its face. For example, the request would require Oak Way to produce information on any retirement bank account opened by Rafael Alves or Diego Santana—even if it has no relation to this litigation—and even if it was opened ten years ago.

d. Interrogatory No. 13 and RFP No. 4

These discovery requests seek information and documents related to Oak Way's application with the FMC. But that has little probative value as to whether it in fact is acting as an



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unlicensed OTI. Plans can change, and requiring Oak Way to produce all “documents relating to Oak’s application for an FMC license, including correspondence with the FMC, supporting materials, and internal documents” is simply not proportionate to the needs of the case. *See* RFP 4. Nor is a detailed response relating to the “events surrounding Oak’s FMC application.” *See* Interrogatory 13.

II. Oak Way’s Interrogatory Responses are More Than Adequate

Complainant seeks “better answers” with respect to interrogatories 2-5, and 11. As with the other document rests and interrogatories, these requests are abusive and seek detailed information that Oak Way should not be required to provide. For example, interrogatory 3 asks:

Describe in detail Oak’s role, including a description of its responsibilities, obligations and rights, in any shipments for which it is designated as a notify party on documentation for said shipments.

Interrogatory 4 asks:

Describe in detail Oak’s role, including a description of its responsibilities, obligations and rights, in any shipments for which it is designated as a consignee on documentation for said shipments.

Oak Way plainly cannot provide a narrative as to every shipment that it ever touched, and it reasonably responded to both requests that “Oak Way acts as an agent NVOCCs and does not hold itself out to the general public to provide transportation or assume responsibility for the transportation from the port or point of receipt to the port or point of destination.”

Further, as shown by the transcript that Complainant attached to its motion to compel, Complainant has already had a chance to ask those questions to Rafael Alvez, who will be the corporate representative of Oak Way in this proceeding. To the extent that Complainant has any further questions, it can ask that to Mr. Alvez at the deposition. It is unreasonable for Complainant to insist that Oak Way provide additional information in response to those interrogatories, as well as in response to interrogatories 2, 5, and 11.



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CONCLUSION

For the good reasons above, Oak Way requests that the Commission deny Complainant's Motion.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via e-mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for Way2Go Cargo Corp., at sarah@epgdlaw.com and jennifer@epgdlaw.com on this 3rd day of March, 2026.

By: /s/ Schneur Zalman Kass

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EXHIBIT A